

26SMCP00258 26SMCP00258

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-07-31

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Case Number: 26SMCP00258 Hearing Date: July 31, 2026 Dept: M

CASE NAME: Nataf v. Sisi

Missy, Inc.

CASE NO.: 26SMCP00258

HEARING DATE: 7/31/2026

MOTION: Petition to Release Mechanics Lien

Legal

Standard

Civil Code section 8480 provides

that the owner of property may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in section 8460. (Civ. Code, § 8480(a).) Section 8460 provides that “[t]he claimant shall commence an action to enforce a lien within 90 days after recordation of the claim of lien.” (Civ. Code, § 8460(a).) Section 8460 further provides that “[i]f the claimant does not commence an action to enforce the lien within that time, the claim of lien expires and is unenforceable.” (Id.) Section 8460 also provides that the 90-day time limit to commence an action to enforce a lien does not apply if there was an agreement to extend credit and a notice of that fact was recorded within 90 days after recordation of the claim of lien or more than 90 days after recordation of the claim of lien but before a purchaser or encumbrancer for value and in good faith acquires rights in the property. (Civ. Code, § 8460(b).) A property owner may not petition for a release order until he or she gives the claimant notice demanding that the claimant execute and record a

release of lien claim at least ten days before filing the petition. (Civ. Code, § 8482.)

A petition for a release order must be verified and include all of the following: (1) the date of recordation of the claim of lien, with a certified copy of the lien attached; (2) the county in which the claim of lien is recorded; (3) the book and page or series number of the place in the official records where the claim of lien is recorded; (4) the legal description of the property subject to the claim; (5) whether an extension of credit has been granted and if so to what date and that the time for commencement of an action to enforce the lien has expired; (6) that the owner has given the claimant notice under section 8482 demanding that the claimant execute and record a release of the lien and that the claimant is unable or unwilling to do so or cannot with reasonable diligence be found; (7) whether an action to enforce the lien is pending; and (8) whether the owner of the property or interest in the property has filed for relief in bankruptcy or there is another restraint that prevents the claimant from commencing an action to enforce the lien. (Civ. Code, § 8484.)

Civ. Code section 8488 provides that the prevailing party is entitled to reasonable attorney's fees. (Civ. Code, § 8488(c).)¿

“The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing. Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in¿Section 8108.”¿(Civ. Code § 8486(b).) Section 8108 provides addresses at which a respondent must be served, depending on the title of the person to be served. The petitioner bears the burden of proving he complied with service and date for hearing requirements. (Civ. Code. § 8488(a).)¿

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ANALYSIS

Petitioner Marion M. Nataf seeks to release a mechanics lien from real property under Civil Code § 8460.

The proof

of service of the petition and notice of hearing was served via certified mail, postage prepaid, return receipt requested, using the address on the claim of lien and the records of the Contractors' State License Board. (Civ. Code §§ 8108; 8486.) The service requirements of Section 8486 have therefore been satisfied. 22

The Petition conforms to section

8480. Petitioner owns real property located at 10586 Cheviot Drive, Los Angeles, California 90064 (the "Property"). Respondent is a licensed general contractor for construction. On December 23, 2025, Respondent recorded a claim of mechanics lien against the Property for \$21,210.00. Petitioner avers that Respondent did not commence an action as required under section 8460. The Petition provides the date of recordation, a certified copy of the lien, the full description of the lien and property, the lack of extension of credit, notice to the claimant, the lack of actions regarding the lien, and the lack of restraints to prevent the enforcement of the lien. Petitioner sent a written demand for respondent to release the lien, but Respondent did not respond. Petitioner therefore meets their initial burden on the petition, shifting the burden to claimant to show the validity of the lien.

Respondent failed to oppose the petition.

Accordingly, the petition is GRANTED.